

1 HOUSE BILL NO. 571

2 INTRODUCED BY S. KLAKKEN, G. OBLANDER

3
4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING AERONAUTICS LAWS RELATED TO THE USE OF
5 AUTOMATIC DEPENDENT SURVEILLANCE-BROADCASTS; AND PROVIDING DEFINITIONS."6
7 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:8
9 NEW SECTION. **Section 1. Automatic dependent surveillance-broadcasts.** (1) No entity, whether
10 a division of government or a private company or corporation, may use information broadcast or collected by
11 automatic dependent surveillance-broadcast systems, whether that data originates from ADS-B In or ADS-B
12 Out, as a means for calculating, generating, and collecting fees from aircraft owners or operators who operate
13 aircraft within the geographic boundaries of the state.

14 (2) For the purposes of this section, the following definitions apply:

15 (a) "Aircraft" has the same meaning as provided in 67-1-101, except the aircraft must have a gross
16 weight of 9,000 pounds or less and operate under Title 14, part 91, Code of Federal Regulations.17 (b) "Automatic dependent surveillance-broadcast" means an advanced aviation surveillance
18 technology that combines an aircraft's positioning source, aircraft avionics, and a ground infrastructure to create
19 an accurate surveillance interface between an aircraft and air traffic control. The term consists of two different
20 services, ADS-B In and ADS-B Out, that can provide information, such as an aircraft's global positioning system
21 location, altitude, ground speed, and other data, to ground stations and other aircraft, as well as weather and
22 traffic information to aircraft operators.23
24 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an
25 integral part of Title 67, chapter 1, part 1, and the provisions of Title 67, chapter 1, part 1, apply to [section 1].

26 - END -